

responsibilities of the particular office and the circumstances existing at the time the challenged action was taken. Pp. 238-249. 471 F. 2d 430, reversed and remanded.

BURGER, C. J., delivered the opinion of the Court, in which all Members joined except DOUGLAS, J., who took no part in the decision of the cases.

Michael E. Geltner argued the cause for petitioner in No. 72-914. With him on the briefs were *Leonard J. Schwartz*, *Melvin L. Wulf*, *Joel M. Gora*, *Nelson G. Karl*, *Niki Z. Schwartz*, and *Walter S. Haffner*. *Steven A. Sindell* argued the cause for petitioners in No. 72-1318. With him on the brief were *Joseph M. Sindell* and *Joseph Kelner*.

Charles E. Brown argued the cause for respondents in No. 72-914. With him on the brief were *Robert F. Howarth, Jr.*, *Delmar Christensen*, and *C. D. Lambros*. *R. Brooke Alloway* argued the cause for respondents in No. 72-1318. With him on the brief was *John M. McElroy*.†

MR. CHIEF JUSTICE BURGER delivered the opinion of the Court.

We granted certiorari ¹ in these cases to resolve whether the District Court correctly dismissed civil damage actions, brought under 42 U. S. C. § 1983, on the ground that these actions were, as a matter of law, against the State of Ohio, and hence barred by the

†Briefs of *amici curiae* urging reversal in both cases were filed by *Mario G. Obledo* and *Sanford Jay Rosen* for the Mexican American Legal Defense and Educational Fund, and by *David E. Engdahl* for the National Council of the Churches of Christ in the U. S. A. et al. *Carl J. Character* filed a brief for the National Bar Assn. as *amicus curiae* urging reversal in No. 72-1318.

¹ 413 U. S. 919 (1973).